

SMOKE FREE ADDENDUM

Addendum Date: ["Management"] ☐ as Owner of

☐ as Agent for the Owner of

["Property Name"] enters into this Smoke Free Addendum to the Rental Contract with

["Resident"], pertaining to

House / Unit No. located at

[Address]. This addendum is part of the Rental Contract dated [Date of Lease].

This addendum is a legal contract. Resident acknowledges that a violation could lead to termination of Resident's lease or Resident's right to continue living in the house. If Resident or someone living in or visiting the house is a smoker, Resident must carefully consider whether he or she will be able to abide by the terms of this contract.

1. Resident's Disclosure of Smokers or Non-Smokers.

☐ Neither Resident nor anyone else who will be living in the house is a smoker.

☐ Someone who will be living in the house is a smoker; however, Resident agrees to follow Management's no-smoking policy.

2. Resident Is Prohibited from Smoking Inside the House or Any Building on the Property. Resident is prohibited from using all forms of lighted or burning tobacco products and smoking of tobacco products inside the house or any office or business area of the property. The prohibition on use of any lighted or burning tobacco products or smoking of any tobacco products extends to all residents, their occupants, social guests, invitees and all others who are present on or in any portion of the property. The no-smoking policy and rules extend to, but are not limited to, the interior of the house, any office or business area of the property, work areas, and all other enclosed spaces on the property. Smoking of non-tobacco products which are harmful to the health, safety, and welfare of others is also prohibited by this addendum and other provisions of the Lease inside the house or any building on the property.

3. Resident May Be Allowed to Smoke Outside of Buildings Under Certain Conditions. Smoking is permitted only in specially designated areas outside of the buildings on the property. Other areas outside the building on the grounds may be designated as non-smoking areas by signs. Smoking is strictly prohibited in any outside areas that we designate as no-smoking either by appropriate signage or by written notice to you.

Smoking outside of the house and buildings on the property is prohibited or allowed as follows:

Smoking on patios, porches, decks, and limited areas attached to or outside of your house and buildings ☐ is ☐ is not permitted.

Smoking in the following described outside areas or grounds ☐ is ☐ is not permitted:

The following outside areas of the property may be used for smoking:

Even though smoking may be permitted in certain limited outside areas, Management reserves the right to direct the Resident and Resident's occupants, family, social guests, and invitees to cease and desist from smoking in those areas if smoke is entering the house or buildings or if it is interfering with the health, safety, or welfare or disturbing the quiet enjoyment, or business operations of Management, other residents, or guests.

4. Resident's Liability and Responsibility for Damages and Cleaning. Resident is responsible for payment of all costs and damages to the house, or any other portion of the property for repair, replacement, or cleaning due to smoking or smoke related damage caused by Resident or Resident's occupants, family, guests, or invitees, regardless of whether such use was a violation of this addendum. Any costs or damages we incur related to repairs, replacement, and cleaning due to your smoking or due to Resident's violation of the no-smoking provisions of the Lease Contract are in excess of normal wear and tear. Smoke related damage, including but not limited to, the smell of tobacco smoke which permeates sheetrock, carpeting, wood, insulation, or other components of the house or building is in excess of normal wear and tear in our smoke free house.

5. Resident's Responsibility for Loss of Rental Income and Economic Damages Regarding Others. Resident is responsible for payment of all lost rental income or other economic and financial damages or loss to us due to smoking or smoke related damage caused by Resident or Resident's occupants, family, social guests, or invitees which results in or causes others illness or discomfort, causes others to vacate their residences, results in disruption of others' quiet enjoyment, or adversely affects others' or occupants' health, safety, or welfare.

6. Definition of Smoking. Smoking refers to any use or possession of a cigar, cigarette, or pipe containing tobacco or a tobacco product while that tobacco or product is burning, lighted, or ignited, regardless of whether the person using or possessing the product is inhaling or exhaling the smoke from such product. The term tobacco includes, but is not limited to, any form, compound, or synthesis of the plant of the genus *Nicotiana* or the species *N. tabacum* which is cultivated for its leaves to be used in cigarettes, cigars, or pipes. Smoking also refers to use or possession of burning, lighted, or ignited non-tobacco products if they are unlawful, noxious, offensive, unsafe, unhealthy, or irritating to other persons.

7. **Lease Termination for Violation of the Addendum.** Any violation of the no-smoking policy is a material and substantial violation of this addendum and the lease. Management has the right to terminate Resident's lease or right of occupancy of the house for any violation of this No-Smoking Addendum. Violation of the no-smoking provisions is a material and substantial default or violation of the lease. Despite the termination of Resident's lease or right of occupancy, Resident will remain liable for rent through the end of the lease term or the date on which the house is re-rented to a new occupant, whichever comes first. Resident shall be responsible for payment of rent after he or she vacates the leased premises even though he or she is no longer living in the house.
8. **Extent of Resident's Liability for Losses Due to Smoking.** Resident's responsibility for damages, cleaning, loss of rental income, and loss of other economic damages under this No-Smoking Addendum are in addition to, and not in lieu of, Resident's responsibility for any other damages or loss under the Rental Contract or any other addendum.
9. **Resident's Responsibility for Conduct of Occupants, Family Members, Social Guests, and Invitees.** Resident is responsible for communicating this no-smoking policy and for ensuring compliance with this addendum by Resident's occupants, family, social guests, and invitees.
10. **There Is No Warranty of a Smoke Free Environment.** Although Management prohibits smoking in all interior parts of the property, there is no warranty or guaranty of any kind that the house or the property is smoke free. Smoking in certain limited outside areas is allowed as provided above. Enforcement of the no-smoking policy is a joint responsibility which requires Resident's cooperation in reporting incidents or suspected violations of smoking. Resident must report violations of our no-smoking policy before Management is obligated to investigate and act, and Resident must thereafter cooperate in prosecution of such violations.

Name of Owner or Management Company

By: _____
Signature of Management Representative

As: _____ (Title)

Resident's Signature

Resident's Signature

Resident's Signature

Resident's Signature

Resident's Signature

Resident's Signature